ERIC BRAKEBILL JONES
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Petitioner and Successor Trustee In Pro Per

SUPERIOR COURT OF CALIFORNIA

COUNTY OF MONTEREY – PROBATE DIVISION

Estate of: **JUDY BRAKEBILL JONES,** aka JUDY LEE JONES, Decedent.	**Case No. 25PR000590** **EX PARTE PETITION FOR:** **1. SUSPENSION OF POWERS OF EXECUTOR (PROB. CODE § 9614)** **2. APPOINTMENT OF SPECIAL ADMINISTRATOR WITH GENERAL POWERS (PROB. CODE §§ 8540, 8544)** **[IMMEDIATE RISK OF WASTE / CONSTRUCTIVE ABANDONMENT]**

Date: February 10, 2026

Time: 8:30 AM

Dept: 13

Judge: Hon. Elisabeth K. Mineta

TO THE HONORABLE JUDGE OF THE SUPERIOR COURT:

Petitioner Eric Brakebill Jones ("Petitioner") hereby applies Ex Parte for an Order suspending the powers of Heidi Jones Blanchard ("Respondent") and appointing Petitioner as Special Administrator with General Powers under the Independent Administration of Estates Act (IAEA) to preserve the Estate.

I. BASIS FOR EX PARTE RELIEF (THE EXIGENCY)

This Application is based on the urgent need to prevent further waste and dissipation of Estate assets.

1. Ongoing Insolvency (The "Mule Transaction"):
Evidence confirms Respondent previously facilitated the unauthorized transfer of $10,650.00 in Estate cash to a third-party account lacking economic substance (**Exhibit A**, Chase Transaction #61). This established a pattern of dissipation. The Estate is currently unbonded against this risk.

2. Constructive Abandonment (The "Nexus"):
Respondent and her counsel have constructively abandoned the defense of the Estate, evidenced by their default on mandatory filing fees in the related appellate matter (*Jones v. Superior Court*, Case H054014) as of January 23, 2026 (**Exhibit E**).

3. Regulatory Conflict (State Bar Case #265071):

Respondent's counsel is currently the subject of a Priority 1 State Bar investigation regarding the misappropriation identified in **Exhibit A**. Consequently, the Fiduciary is effectively unrepresented.

4. Waste:

The Real Property is the sole remaining asset. Without the immediate appointment of a Special Administrator to list and sell the property, the Estate faces irreparable harm from tax defaults, insurance lapses, and market decline.

II. MEMORANDUM OF POINTS AND AUTHORITIES

A. THE COURT MUST SUSPEND POWERS TO PREVENT "FUTURE" HARM (PROB. CODE § 9614)

Probate Code § 9614 mandates suspension if "it appears to the court that the personal representative has wasted... or is about to do so."

The standard is predictive. The "Mule Transaction" (**Exhibit A**) proves the propensity to dissipate assets. The "Appellate Default" (**Exhibit E**) proves the incapacity to manage legal duties. Combined, these facts demonstrate that the Respondent is "about to" allow the Estate to collapse through neglect or further dissipation. The "staleness" of the initial theft is irrelevant; the unbonded risk creates a fresh emergency every day the Respondent remains in power.

B. APPOINTMENT OF SPECIAL ADMINISTRATOR IS NECESSARY (PROB. CODE § 8540)

Under *Estate of Feeney* (1983), the Court has inherent power to appoint a Special Administrator to preserve the estate when the current representative is paralyzed or compromised.

Here, the Estate is leaderless. The Respondent has defaulted in the Court of Appeal. Her counsel is conflicted (State Bar #265071). Immediate appointment of Petitioner as Special Administrator with General Powers (Prob. Code § 8544) is the only mechanism to secure the Real Property, list it for sale, and deposit proceeds into a blocked account, thereby curing the risk.

III. DECLARATION OF ERIC BRAKEBILL JONES

I, Eric Brakebill Jones, declare:

1. The Property:

The asset at risk is 17742 Berta Canyon Road, Salinas, CA. It is currently unoccupied.

2. Evidence of Dissipation (Exhibit A):

Attached as **Exhibit A** is a Chase Bank receipt showing the deposit of $10,650.00 (vehicle sale proceeds) into a third-party account ending in #9872 on May 22, 2025. These funds were diverted from the Trust.

3. Evidence of Admission (Exhibit B):

Attached as **Exhibit B** is a letter from Nicora Law dated June 27, 2025, admitting possession of these funds, which contradicts their subsequent Verified Petition.

4. Evidence of Abandonment (Exhibit E):

Attached as **Exhibit E** is the "Notice of Default" from the Court of Appeal (Case H054014) dated Jan 23, 2026. This confirms Respondent's counsel has ceased legal defense of the Estate.

5. Necessity:

I request appointment as Special Administrator to list the property immediately. I agree to hold all net proceeds in a Court-Blocked Account.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 9, 2026, at Temple City, California.

EBJ

Eric Brakebill Jones

Petitioner

IV. DECLARATION REGARDING NOTICE (CRC 3.1204)

I, Eric Brakebill Jones, declare:

1. Notice Given:

On Sunday, February 8, 2026, at 10:05 PM, I notified Respondent's counsel, Albert J. Nicora, via email at anicora@nicoralaw.com of this Ex Parte application to be heard on Feb 10, 2026.

2. No Opposition Expected:

I do not expect an appearance. Counsel has ceased communication and defaulted on the related appellate matter (**Exhibit E**). Furthermore, Counsel has a direct conflict of interest regarding the evidence of asset dissipation (**Exhibit A**) and is the subject of State Bar Investigation #265071 regarding the same.

3. Exigency:

Immediate suspension is required because notice to the Respondent of a "removal" action presents a severe risk that remaining liquid assets will be dissipated before a hearing can be held (CRC 3.1204(b)(3)).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Eric Brakebill Jones

[PROPOSED] ORDER

SUSPENDING POWERS AND APPOINTING SPECIAL ADMINISTRATOR

The Ex Parte Petition of Eric Brakebill Jones for Suspension of Powers of Executor and Appointment of Special Administrator having come before the Court, and good cause appearing therefor:

IT IS HEREBY ORDERED THAT:

1. The powers of Heidi Jones Blanchard as Personal Representative of the Estate of Judy Brakebill Jones are hereby SUSPENDED pursuant to Probate Code § 9614, pending further order of this Court;

2. Eric Brakebill Jones is hereby appointed Special Administrator with General Powers under the Independent Administration of Estates Act (Probate Code §§ 8540, 8544);

3. The Special Administrator is authorized to list for sale, market, and sell the real property located at 17742 Berta Canyon Road, Salinas, CA, under IAEA authority;

4. All net proceeds from the sale shall be deposited into a Court-Blocked Account, subject to further order of this Court;

5. Letters of Special Administration shall issue upon the filing of any required bond.

DATED: _____

_____

Hon. Elisabeth K. Mineta

Judge of the Superior Court

PROOF OF SERVICE

I, Eric Brakebill Jones, declare that I am over 18 years of age and not a party to this action. On February 9, 2026, I served the following document(s):

EX PARTE PETITION FOR SUSPENSION OF POWERS OF EXECUTOR AND APPOINTMENT OF SPECIAL ADMINISTRATOR WITH GENERAL POWERS

on the following party by the method indicated:

BY ELECTRONIC SERVICE (EMAIL):

Albert J. Nicora, Esq.
Nicora Law, APC
anicora@nicoralaw.com
Counsel for Heidi Jones Blanchard

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 9, 2026, at Temple City, California.

EBJ

Eric Brakebill Jones